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SUPREME COURT OF BRITISH COLUMBIA â Victoria No. FL-260482

FORM F31 (RULE 10-6 (4))

No. FL-260482
Victoria Registry

IN THE SUPREME COURT OF BRITISH COLUMBIA

BETWEEN:
ELEANOR VANCE
CLAIMANT / APPLICANT
AND:
ARTHUR VANCE
RESPONDENT

NOTICE OF APPLICATION (FAMILY LAW MATTERS)

Name(s) of applicant(s): The Claimant, Eleanor Vance

To: The Respondent, Arthur Vance
c/o his counsel of record, Sterling Barristers & Solicitors, 1002 Wharf Street, Victoria, BC

TAKE NOTICE that an application will be made by the Applicant to the presiding associate judge in
chambers at the Courthouse, 850 Burdett Avenue, Victoria, British Columbia,
on December 4, 2026,
at 9:45 AM, for the orders set out in Part 1 below.

PART 1: ORDERS SOUGHT

1. The Respondent, Arthur Vance, shall pay to the Claimant interim child

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support for the two children of the marriage, namely Liam Vance (born May 14, 2012) and Chloe Vance (born August 22, 2015), in the amount prescribed by the Federal Child Support Guidelines for British Columbia based on an imputed annual guideline income of $240,000, commencing December 1, 2026, and payable on the 1st day of each and every month thereafter.

2. The Respondent shall pay his proportionate share (65%) of the children's special or extraordinary expenses pursuant to section 7 of the Federal Child Support Guidelines, including competitive soccer academy registration ($3,400 annually) and specialized orthodontic treatment ($4,200).

3. The Respondent shall pay interim spousal support to the Claimant pursuant to the Spousal Support Advisory Guidelines (SSAG) in the monthly amount of $3,200, payable on the 1st of each month.

4. The Respondent shall, within twenty-one (21) days of the date of this Order, provide full financial disclosure regarding his privately owned corporation, Vance Holdings Ltd., pursuant to section 21 of the Guidelines and Supreme Court Family Rule 5-1, including:

(a) Complete corporate financial statements for the fiscal years ending 2024 and 2025;

(b) Corporate income tax returns (T2) and Notices of Assessment for 2024 and 2025;

(c) General ledgers detailing shareholder loan account drawdowns and management fees paid.

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5. Costs of this application shall be paid by the Respondent to the Applicant.

PART 2: FACTUAL BASIS

1. The parties were married on June 18, 2010, and separated on April 15, 2025. There are two children of the marriage residing primarily with the Claimant.
2. The Respondent is a 50% shareholder and managing director of Vance Holdings Ltd., a profitable commercial construction consulting enterprise in Victoria, BC.
3. The Respondent claims an annual guideline income of only $110,000 based on his T4 salary draw, ignoring substantial retained pre-tax corporate earnings exceeding $260,000 in Vance Holdings Ltd.
4. The children have established special expenses requiring immediate contribution, and the Claimant’s modest part-time employment income ($38,000) cannot sustain the mortgage and household costs.

PART 3: LEGAL BASIS

1. Family Law Act, S.B.C. 2011, c. 25, sections 147, 148, 149, 160, and 165;
2. Federal Child Support Guidelines, SOR/97-175, sections 3, 7, 16, 17, 18, 19, and 21;
3. Kowalewich v. Kowalewich, 2001 BCCA 450 (principles governing corporate income imputation);
4. Supreme Court Family Rules, B.C. Reg. 169/2009, Rules 5-1, 10-6, and 13-1;
5. Supreme Court Practice Direction 72 (PD-72 - Associate Judges Chambers

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Pilot Project).

PART 4: MATERIAL TO BE RELIED ON

1. Affidavit #1 of Eleanor Vance, sworn November 18, 2026, with attached Exhibits A and B;
2. Form F8 Financial Statement of Eleanor Vance, filed October 10, 2026.

DATED: November 20, 2026.

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Sarah Jenkins

Counsel for the Claimant, Eleanor Vance